29.04.2024

To

Mrs. P.Swenka Shaurya,
D/o Pradeed Kumar Gupta,
Shahid Chawak west champaran,
Bettiah Bihar – 845 438

Madam,

Under instructions from my client, Mr. Satya Prakash S/o Shri Yogendra Prasad, residing at D.No.A-201, 3rd Floor, RR Prince Apartments, Robertson Road, R.S.Puram, Coimbatore – 641 038, I issue the following legal notice to you:-

1. My client states that the marriage between you and him took place on 04.12.2015 at Bettiah, Bihar West Champara, Bihar as per the Hindu Rites and Customs in the presence of family members, relatives and friends. From this wedlock, two children were born.

2. My client states that he first met you through mutual friends who were all pursuing their B.com (C.A.) studies along with you at a coaching center in Bihar. He would frequently visit the coaching center to pick up his friends and it was during one of these visits that his friends introduced him to you. This introduction marked the beginning of your acquaintance. Over time, my client and you developed a friendship, which gradually evolved into mutual affection which lasted for more than 4 years before tying knots.

3. Subsequently, in 2014, my client relocated to Coimbatore from Bihar and ventured into a successful business of Trading bearings, which he has been managing effectively to this day. With his business flourishing, my client expressed his desire to solidify his marital bond with you. Initially, you agreed to the proposal, but later, due to parental opposition, the plan was put on hold. However, my client remained patient, hoping for your parents' eventual consent. Eventually, recognizing my client's unwavering love for you and his thriving business, your parents

acquiesced to the union. Thus, with their blessing, both of you solemnized your marriage on December 4, 2015, in Bihar, your shared hometown. Following the wedding, you both settled in Coimbatore and began your life together. In March 2016, you returned to Bihar to celebrate the Holi festival with your family. During this visit, your father unexpectedly took you back to his house without informing my client or inviting him along. Despite the disrespect shown by your father, my client sent you with him. It was during this stay at your paternal home that you discovered you were pregnant. Concerned about the risks of travel during pregnancy and considering my client's solitude in Coimbatore, you opted to remain in Bihar with your parents.

4. My client states that thereafter, a daughter was born on 25.11.2016, after which you returned to Coimbatore with my client's parents. However, my client noticed a sudden change in your demeanour and behaviour upon your return. He was deeply saddened and shocked by the abrupt shift in your attitude towards him. You began to exhibit disrespectful behaviour, engaging in frequent arguments and withholding basic amenities such as breakfast or tea. Despite initially expressing affection and care, your attitude shifted after staying at your paternal home during pregnancy, manifesting in dominance and hostility towards my client.

5. My client also asserts that since your return, you have consistently shown disrespect towards him and engaged in frequent arguments, even over trivial matters. For example, you often neglected to provide my client with breakfast or a cup of tea in the mornings and when he requested it, you responded with verbal abuse. My client states that at your own desire, you became a housewife and insisted to look after the family. My client further states that prior to the birth of the child, you displayed unwavering love and care towards my client. However, following your stay at your paternal home during pregnancy, your behavior towards my client drastically changed. Whereas before you were affectionate, after returning from Bihar, you began to exert dominance over my client, seeking to control him and dictate his actions. Despite my client's enduring love and patience, your attitude towards him only worsened over time. my client further states that in June 2017, after enduring four months of distress, he reached his breaking point and sought intervention from your parents. Fortunately, they visited Coimbatore and advised you to mend your

relationship with my client. Following their intervention, the situation temporarily improved, but tensions resurfaced in the subsequent years.

6. My client asserts that his love for you remained unwavering despite your consistent disrespect towards him. Similarly, over the years, you never approached my client with politeness; instead, you consistently showed disrespect, especially in the presence of his siblings and friends. You demonstrated a persistent greediness concerning my client's brothers' family, despite my client fulfilling all your desires and providing you with every luxury. Despite my client's continuous hard work to meet your expectations, he received only disrespect in return.

7. Meanwhile, prior to the COVID-19 outbreak, both of you travelled to Bihar to celebrate Holi and spend the summer vacation, during which you visited your parents' house with the child. Upon returning to Coimbatore, my client urged you to accompany him back, but you declined, opting to stay at your paternal home, disregarding my client's needs as he was alone in Coimbatore at the time. Subsequently, in March 2021, when the government announced the COVID-19 lockdown, you both discovered that you were expecting again. Following the relaxation of lockdown measures in June 2021, my client promptly travelled to Bihar and brought you and the child back to Coimbatore. However, upon your return, you found it challenging to manage everything alongside the pregnancy so you both decided that you would go to Bihar and live with your parents until delivery. Whereas, though you agreed for the same, later on created a horrifying scene by slapping my client and tearing his shirt in front of the child over a heated argument that you picked up and you chose to remain in Coimbatore itself. Subsequently, the second child was born on 09.11.2020, yet your parents did not bother to visit and see the newborn. My client states that is ongoing harassment persisted unabated which, once again led him to contact your parents to explain the situation. Consequently, your parents came to Coimbatore and advised you to strive for a peaceful marital life. Following their visit, you exhibited a calm demeanour for a few months. However, your behaviour towards my client gradually deteriorated over time. You repeatedly threatened to file false domestic violence cases against my client and subjected him to your dominance, treating him like a subordinate. Moreover, whenever my client's parents visited Coimbatore, you mistreated them and neglected their well-being. Examples of

such mistreatment include turning off the television while my client's parents were watching it, secluding the children in the bedroom and locking the door to prevent my client's parents from interacting with them, purposefully increasing the television volume at night, causing disturbances to everyone's sleep etc.,.

8. My client further states that terrifyingly, in September 2023, after when my client had undergone eye surgery, his parents had visited home and at that time, you threatened my client with a hot cup of tea in your hand that if not his parents leave soon, you would pour the hot tea on my client’s face. My client got worried of your such behaviour and he requested his parents to leave the house at that time. Furthermore, from Feb 2024, you refused to provide food for my client at home, because of which he mentally put on with immense pressure and distress, ultimately he ended up getting affected with high Blood pressure and diabetes.

9. My client asserts that he consistently fulfilled his responsibilities as a husband and father. He ensured that the family enjoyed all the comforts and regularly took you and the children on vacations, striving to maintain a harmonious marital life. However, despite his efforts, he faced immense challenges due to your indifferent demeanor towards him. It became evident to my client that you had no interest in fostering a happy married life ever since relocating from Bihar in 2016. Recently, my client realized that you were attempting to assert dominance over him, mirroring the behaviour of your own mother within your family. When my client confronted you about this, you responded with anger, pushing him away and leaving the house with the children. Concerned for your well-being, my client reached out to friends, family, and relatives, only to discover that you had gone to your parents' house in Bihar.

10. My client expresses that he endured considerable mental distress caused by you, holding onto the hopeful belief that you would change over time and that your relationship could return to its previous state. However, despite his efforts, all his attempts to reconcile went unrecognized. Consequently, my client has come to the realization that your feelings towards him have changed, and you no longer wish to maintain the marriage. Regrettably, this has led my client to take the necessary steps to initiate divorce proceedings through this notice.

Therefore, you are hereby called upon to express your willingness to give divorce by mutual consent through Court within 15 days after receipt of this notice, failing which please take notice that my client will have no other option except to approach court of law for seeking appropriate relief of divorce by holding you responsible for all costs and consequences.

ADVOCATE